

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
YARDLY DUFANAL,

Plaintiff,

-against-

NOSTRAND-HILLEL FOODS INC.,
THE CITY OF NEW YORK,
NYPD OFFICER JANNIE WONG and
NYPD OFFICER JOHN DOE,

Defendants.
----- X

Plaintiff designates
Kings County as the
place of trial

Basis of venue is
county of occurrence

SUMMONS

To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
February 13, 2019

SIVIN & MILLER, LLP

By


Edward Sivin
Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

To:

Nostrand-Hillel Foods Inc., c/o New York Secretary of State

The City of New York, c/o NYC Corp. Counsel, 100 Church St., New York, NY 10007

NYPD Officer Jannie Wong, c/o NYPD 70th Pct., 154 Lawrence Ave., Brooklyn, NY 11230

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
YARDLY DUFANAL,

Plaintiff,

-against-

VERIFIED COMPLAINT

NOSTRAND-HILLEL FOODS INC.,
THE CITY OF NEW YORK,
NYPD OFFICER JANNIE WONG and
NYPD OFFICER JOHN DOE,

Defendants.

----- X

Plaintiff, by her attorneys Sivin & Miller, LLP, complaining of defendants, alleges
as follows, upon information and belief:

THE DEFENDANTS

1. That at all times herein mentioned, defendant Nostrand-Hillel Foods Inc.
(hereinafter “Nostrand”) was and is a domestic corporation, organized and existing under and by
virtue of the laws of the State of New York.
2. That at all times herein mentioned, Nostrand owned, operated, managed and
maintained a “McDonald’s” restaurant (hereinafter “the restaurant”) located at 2154 Nostrand
Avenue, Brooklyn, NY.
3. That at all times herein mentioned, the restaurant was a place or provider of
public accommodation, within the meaning of NYC Administrative Code § 8-107.
4. That at all times herein mentioned, defendant The City of New York
(hereinafter “the City”) was and is a municipal corporation, organized and existing under and by
virtue of the laws of the State of New York.

5. That at all times herein mentioned, the City operated, controlled, and maintained a police force known as the New York Police Department (hereinafter “the NYPD”).

6. That at all times herein mentioned, defendant NYPD Officer Jannie Wong (hereinafter “Wong”) was and is employed as an officer with the NYPD.

7. That at all times herein mentioned, Wong was acting within the course and scope of her employment as an officer with the NYPD.

8. That at all times herein mentioned, Wong was acting under color of state law.

9. That at all times herein mentioned, defendant NYPD Officer John Doe, whose name is fictitious and whose identity is unknown to plaintiff, was and is employed as an officer with the NYPD and was Wong’s “partner” and acted in concert with Wong in connection with the wrongful conduct alleged herein by plaintiff.

10. That at all times herein mentioned, Doe was acting within the course and scope of his employment as an officer with the NYPD.

11. That at all times herein mentioned, Doe was acting under color of state law.

12. That prior to the institution of this action and within ninety (90) days from the dates when the causes of action accrued herein, a notice of claim and intention to sue was duly served upon and filed with defendants City, Wong, and Doe on behalf of plaintiff; that this action was not commenced until the expiration of thirty (30) days after such notice of claim and intention to sue was presented and defendants have neglected and/or refused to make adjustment or payment thereon, and this action is being commenced within one year and ninety days after the causes of action accrued herein.

13. That all of the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules § 1602 with respect to joint and several liability.

THE FACTS

14. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

15. That on September 18, 2018, plaintiff, who is of Afro-Haitian descent, lawfully entered the restaurant intending to purchase food from the restaurant.

16. That almost immediately after plaintiff entered the restaurant, an employee of the restaurant, acting within the course and scope of his employment with the restaurant, approached plaintiff, engaged her in a brief conversation and, without any legal justification, told plaintiff that she must leave the restaurant.

17. That almost immediately after the restaurant employee told plaintiff that she must leave the restaurant, Wong and Doe approached plaintiff and, without any legal justification, told plaintiff that she must leave the restaurant.

18. That in response to these directives, plaintiff verbally expressed her displeasure at being directed to leave the restaurant without justification.

19. That in response to these directives, plaintiff also attempted to call 9-1-1 to report the improper actions of defendants herein, and plaintiff further advised defendants that she was calling 9-1-1.

20. That in response to plaintiff's expression of displeasure and attempt to call 9-1-1, and in retaliation for plaintiff having exercised her First Amendment rights of free speech and of petitioning the government for redress of grievances, Wong and Doe forcibly seized

plaintiff, searched plaintiff, placed her in handcuffs, and arrested her without a warrant and without probable cause or reasonable suspicion to believe that plaintiff committed or was about to commit any crime or criminal violation.

21. That Wong's and Doe's actions in seizing, searching, handcuffing, and arresting plaintiff were undertaken at the prompting, encouragement, endorsement, and importuning of an employee of the restaurant, who was acting within the course and scope of her employment at the restaurant.

22. That following plaintiff's arrest, Wong and Doe imprisoned plaintiff at various locations, including a police vehicle and a police precinct.

23. That on September 18, 2018, Wong then initiated and/or caused to be initiated a criminal prosecution of plaintiff, charging plaintiff with a crime (trespass) of which plaintiff was innocent and of which Wong knew plaintiff to be innocent.

24. That Wong did not have probable cause to believe that plaintiff was guilty of the crime with which Wong charged plaintiff.

25. That in support of the criminal prosecution, Wong executed an accusatory instrument and made other statements in which she knowingly misrepresented that she observed plaintiff unlawfully remain in and refuse to leave the restaurant after being told numerous times by the manager to leave the restaurant.

25a. That alternatively, the manager of the restaurant falsely represented to Wong and to Doe that plaintiff unlawfully remained in and refused to leave the restaurant after being told numerous times by the manager to leave the restaurant.

26. That the misrepresentations made by Wong constituted material evidence in the prosecution of plaintiff, and evidence that was intended and likely to influence a judge or jury on plaintiff's guilt or innocence.

27. That Wong's and Doe's actions in seizing, searching, handcuffing, arresting, imprisoning, and prosecuting plaintiff were undertaken in the immediate presence of each other, and with the knowledge of each other, and Wong and Doe both had reasonable opportunities to intervene to prevent or stop the actions of his or her fellow officer, but intentionally failed to do so.

28. That as a result of the aforesaid prosecution, plaintiff was compelled to appear in court on two occasions and was deprived of her liberty and right to travel.

29. That on or about January 7, 2019, the criminal charge brought against plaintiff was dismissed and the criminal proceeding terminated favorably to plaintiff.

30. That the aforementioned actions by defendants were intentional and malicious in nature.

31. That as a result of defendants' actions, plaintiff suffered physical, emotional, and psychological injuries, embarrassment and humiliation, and loss of liberty, endured and will continue to endure conscious pain and suffering and loss of enjoyment of life, suffered economic loss, and has been otherwise damaged.

32. That upon information and belief, prior to the events alleged herein, Wong and Doe had engaged in improper and unconstitutional conduct that led to the use of excessive force, false arrest, and malicious prosecution of other individuals, and had otherwise abused their authority against individuals while in the course and scope of their employment with the NYPD.

33. That upon information and belief, prior to the events alleged herein, the City and the NYPD knew that Wong and Doe had engaged in improper and unconstitutional conduct that led to the use of excessive force, false arrest, and malicious prosecution of other individuals, and had otherwise abused their authority against individuals while in the course and scope of their employment with the NYPD.

34. That upon information and belief, prior to the events alleged herein, the City and the NYPD knew that Wong and Doe were unfit to act as police officers.

35. That despite the City's and the NYPD's prior knowledge of Wong's and Doe's unfitness and propensities, the City and the NYPD knowingly retained Wong and Doe and failed to take necessary remedial measures, thereby subjecting plaintiff to Wong's and Does's improper, illegal, and unconstitutional conduct.

FIRST CAUSE OF ACTION AGAINST NOSTRAND
(42 U.S.C. § 1981)

36. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

37. That the aforesaid actions of Nostrand and its employees caused plaintiff to be deprived of the same right to make and enforce contracts and to the full and equal benefit of all laws and proceedings for the security of persons and property as is enjoyed by white citizens, and to be subject to like punishment, pains, penalties, taxes, licenses, and exactions of every kind, and to no other, and entitle plaintiff to recover damages from this defendant pursuant to 42 U.S.C. § 1981.

SECOND CAUSE OF ACTION AGAINST NOSTRAND

(NYC and NY State Human Rights Laws)

38. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

39. That the aforesaid actions of Nostrand in directing plaintiff to leave the restaurant due to plaintiff's perceived race, color, national origin, disability and/or citizenship status were violations of NYC Administrative Code § 8-107 and human rights laws of the State of New York, and entitle plaintiff to recover damages from Nostrand.

THIRD CAUSE OF ACTION AGAINST NOSTRAND

(False Arrest/False Imprisonment Under NY State Law)

40. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

41. That the aforesaid actions of Nostrand and its employees in knowingly making false statements to members of the NYPD about plaintiff's conduct, thereby causing and/or contributing to plaintiff's arrest and imprisonment, render Nostrand liable for the false arrest and false imprisonment of plaintiff.

FOURTH CAUSE OF ACTION AGAINST NOSTRAND

(Malicious Prosecution)

42. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

43. That the aforesaid actions of Nostrand and its employees in knowingly making false statements to members of the NYPD about plaintiff's conduct, and in encouraging, endorsing, and importunity the arrest of plaintiff, thereby causing and/or contributing to plaintiff's prosecution, render Nostrand liable for the malicious prosecution of plaintiff.

FIFTH CAUSE OF ACTION AGAINST THE CITY, WONG and DOE
(False Arrest/False Imprisonment Under NY State Law)

44. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

45. That the aforesaid actions of Wong and Doe constitute a false arrest and false imprisonment of plaintiff, for which Wong and Doe are liable under New York law and for which the City is vicariously liable under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION AGAINST THE CITY, WONG and DOE
(Assault and Battery Under NY State Law)

46. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

47. That the aforesaid actions of Wong and Doe constitute an assault and battery of plaintiff, for which Wong and Doe are liable under New York law and for which the City is vicariously liable under the doctrine of respondeat superior.

SEVENTH CAUSE OF ACTION AGAINST THE CITY, WONG and DOE
(Malicious Prosecution Under NY State Law)

48. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

49. That the aforesaid actions of Wong and Doe constitute a malicious prosecution of plaintiff, for which Wong and Doe are liable under New York law and for which the City is vicariously liable under the doctrine of respondeat superior.

EIGHTH CAUSE OF ACTION AGAINST WONG and DOE

(42 U.S.C. § 1983: First, Fourth, Fifth, and Fourteenth Amendment Violations)

50. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

51. That the aforesaid actions by Wong and Doe in assaulting and battering, searching and seizing, and improperly detaining, arresting, imprisoning, and prosecuting plaintiff, and in undertaking these actions in retribution for plaintiff having expressed her disapproval of defendants' actions and having attempted to report defendants' actions to the NYPD, constitute an improper deprivation of plaintiff's right to free speech and to petition the government for redress of grievances, as guaranteed by the First Amendment to the U.S. Constitution, unreasonable and illegal searches and seizures of plaintiff in violation of the proscription against unreasonable searches and seizures contained in the Fourth Amendment to the U.S. Constitution, a denial of liberty of plaintiff without due process of law in violation of the Fifth Amendment to the U.S. Constitution, and an abridgement of the privileges and immunities of plaintiff, a denial of liberty of plaintiff without due process of law, and a denial of equal protection to plaintiff in violation of the Fourteenth Amendment to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

NINTH CAUSE OF ACTION AGAINST WONG and DOE(42 U.S.C. § 1983: First, Fourth, Fifth and Fourteenth Amendment Violations,
Based on Failure to Intervene)

52. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

53. That the aforesaid actions by Wong and Doe in failing to intervene to prevent and/or stop the aforesaid improper conduct by his or her fellow officer constitute an improper

deprivation of plaintiff's right to free speech and to petition the government for redress of grievances, as guaranteed by the First Amendment to the U.S. Constitution, unreasonable and illegal searches and seizures of plaintiff in violation of the proscription against unreasonable searches and seizures contained in the Fourth Amendment to the U.S. Constitution, a denial of liberty of plaintiff without due process of law in violation of the Fifth Amendment to the U.S. Constitution, and an abridgement of the privileges and immunities of plaintiff, a denial of liberty of plaintiff without due process of law, and a denial of equal protection to plaintiff in violation of the Fourteenth Amendment to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

TENTH CAUSE OF ACTION AGAINST WONG
(42 USC § 1983 Claim Based on Denial of Right to Fair Trial)

54. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

55. That the aforesaid actions by Wong constitute a denial of plaintiff's right to a fair trial, in violation of plaintiff's rights under the Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, and entitle plaintiff to recover monetary damages under 42 U.S.C. § 1983.

ELEVENTH CAUSE OF ACTION AGAINST THE CITY
(Negligent Hiring, Training, Supervision, and Retention)

56. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

57. That the aforesaid actions by Wong and Doe and the resulting injuries to plaintiff followed and were the result of the negligence of the City in its hiring, training, supervision, and retention of Wong and Doe.

TWELFTH CAUSE OF ACTION AGAINST THE CITY
(Monell Claim: Deliberate Indifference)

58. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

59. That the aforesaid actions by Wong and Doe and the resulting injuries to plaintiff followed and were the result of a deliberate indifference by the City and the NYPD to an ongoing pattern of conduct by Wong and Doe involving violations of the constitutional rights of citizens of the State of New York.

60. That by virtue of the foregoing, plaintiff is entitled to recover monetary damages from the City under 42 U.S.C. § 1983, pursuant to *Monell v. Dep't of Social Servs. Of N.Y.C.*, 436 U.S. 658.

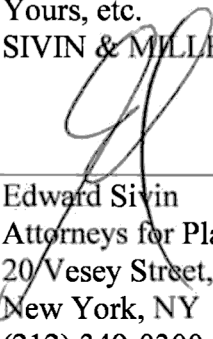
WHEREFORE, plaintiff demands judgment against defendants on the foregoing causes of action in the form of compensatory damages in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and plaintiff also demands punitive damages against defendants in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and plaintiff also demands attorney's fees against all defendants pursuant to 42

USC §§ 1981, 1983 and 1988, and the costs and disbursements of this action.

Dated: New York, New York
February 13, 2019

Yours, etc.
SIVIN & MILLER, LLP

By



Edward Sivvin
Attorneys for Plaintiff
20 Vesey Street, Suite 1400
New York, NY 10007
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
February 13, 2019



EDWARD SIVIN

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

YARDLY DUFANAL,

Plaintiff,

-against-

NOSTRAND-HILLEL FOODS INC.,

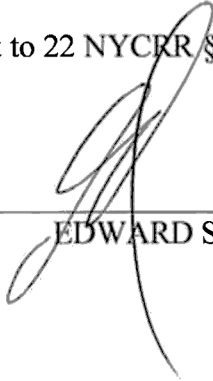
Defendants.

VERIFIED COMPLAINT

SIVIN & MILLER, LLP
Attorneys for Plaintiff
20 Vesey Street, Suite 1400
New York, NY 10007
(212) 349-0300
FAX (212) 406-9462

Certification Pursuant to 22 NYCRR §130-1.1a

Edward Sivin hereby certifies that, pursuant to 22 NYCRR § 130-1.1a, the enclosed papers are not frivolous nor frivolously presented.



EDWARD SIVIN

Dated: New York, New York
February 13, 2019